



KAGAWARAN NG UGNAYANG PANLABAS

MGA PRIBILIGONG INSTRUKSYON

PRIVILEGED INSTRUCTIONS

**Department of Foreign Affairs
REPUBLIC OF THE PHILIPPINES**



REPUBLIKA NG PILIPINAS

KAGAWARAN NG UGNAYANG PANLABAS

REPUBLIC OF THE PHILIPPINES

DEPARTMENT OF FOREIGN AFFAIRS

Privileged Instructions

Fundamental Principles

- Legal and equitable resolution of claims under the tenets of the United Nations Convention on the Law of the Sea (UNCLOS).
- As the Chair of the Association of Southeast Asian Nations (ASEAN), strengthen ASEAN as the preeminent regional association – prevent fracturing and maintain consensus.
- Sanctity of territorial integrity within the West Philippine Sea (WPS) (SCS) region.

Desired End State(s):

- International recognition of the territorial rights of the Philippine nation within the WPS.
- Collective cooperation between all nations with valid WPS claims with regard to energy exploration/development/extraction and fishing.
- Establishment of a binding and enforceable WPS Code of Conduct.
- Conclusion of agreements with China and Vietnam regarding resource access and exploitation under the provisions of UNCLOS and our Zone of Peace, Friendship, Freedom and Cooperation (ZoPFF/C) concept.

Principle Negotiation Positions

- All disputes between nations regarding the WPS should be resolved under the Rule of Law through the proper application of established legal mechanisms, specifically UNCLOS, as the only internationally accepted legal method of resolving territorial sea and landform disputes.
- The ZoPFF/C is a valid concept for guiding the long-term process of settling all WPS claims, while allowing for the immediate initiation of energy exploration and extraction. Under this proposal all nations should accept each nation's claims within the WPS not in dispute. Those entities under dispute be "enclaved" (shelved) and opened for the pursuit of "joint cooperative activities" as outlined in UNCLOS.
- The Philippine government mandates joint development of WPS resources, as required under the provisions of Philippine law.
- The nine-dashed line claim of the People's Republic of China does not follow UNCLOS provisions and is therefore illegal.
- Freedom of the High Seas, specifically Freedom of Navigation through and the Right of Innocent Passage within the WPS, is an unassailable right of all nations.
- Military activities within the entire WPS must cease immediately and confidence-building measures must be emplaced to reduce tensions and restore regional tranquility.
- All other outstanding issues pertaining to the region should be addressed within ASEAN multilateral forums, such as ARF, ASEAN+3, and APEC. ASEAN member nations should resist Chinese attempts to make bilateral agreements with individual states.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Secretary of Foreign Affairs.

MANDATE: As ASEAN Chair, we must do everything in our power to ensure that these talks are successful. The power and prestige of our nation, and of our fellow ASEAN nations, is at stake and we must expend all efforts to ensure these talks are as productive as possible. Our negotiating positions and desired end states, as spelled out above, must be seen by all parties as the best possible courses of action and outcomes. If these talks are unsuccessful, we may well have lost our last opportunity to peacefully contain Chinese ambitions in the SCS and within the greater SEA region.

GENERAL: We, along with the government of Vietnam, are committed to the resolution of this crisis through the mechanisms put in place by the United Nations in UNCLOS. Emphasise that the Tribunal, under Annex VII of UNCLOS, conclusively settled the issue of historic rights and maritime entitlements. Claims that exceed the sovereign rights or jurisdiction that exceeds the geographic and substantive limits of maritime entitlements under UNCLOS are invalid. We are also committed to the spirit of cooperative relations with all nations with claims within the WPS proposed under our ZoPFF/C concept (contained in the references section).

As a concept for cooperation, the ZoPFF/C provides a framework through which collaborative activities, designed to prevent or de-escalate tensions and promote cooperation and friendship among the claimant countries, could be made possible under the following tenets: First, claimant-states set aside their disputes; second, claimant-states engage in specific collaborative or cooperative activities to promote friendship and understanding among them. Claimant states could set aside territorial disputes operationally by “enclaving” the disputed territories from those that are not under dispute. Only when the territorially-disputed islands (including their adjacent waters) are enclaved or sorted from the rest of the waters of the WPS could cooperative activities (fishing, energy exploration, etc.) be put into effect as appropriate for each area. This method promotes joint development of resources, which China, given past statements, says it favors.

China: The results of our submission to the UNCLOS tribunal invalidates China’s claims within the SCS. Our acceptance of and adherence to the decision underscores our preference for a rules-based system to resolve disputes between nations. It demonstrates our faith in the rule of law that all civilized societies adhere. We think that it would be good for all nations who have interests in the WPS to support a reaffirmation of legitimate international legal processes. Beijing’s rejection of the decision, and the legal process under which it was arrived at, only serves to demonstrate that it has no intention of being the “Good Neighbor” it professes itself to be.

The Chinese claims continue to be illegal. The nine-dashed line was created before UNCLOS came into being, once China signed UNCLOS it never recalibrated its claims to bring them within UNCLOS definitions and norms. Instead, China claims 80-90% of the WPS under both UNCLOS and internal Chinese law, specifically the 1992 *Law on the Territorial Sea and Contiguous Zone* and the 1998 law on *Exclusive Economic Zones and Continental Shelf*. China sees the landforms within the WPS as an extension of its continental shelf. While China claims the area has belonged to it since ancient times, its own survey conducted in the early 20th century stated that the southwestern most point of Chinese territory was the Paracel Islands. Increasingly disturbing is Beijing’s aggressive reclamation of certain atolls and reefs in the Spratlys (three of which lay within our EEZ). Their militarization of these outposts make it clear that Beijing’s objective is to take control of the WPS by force.

In your talks with the Chinese delegation, express that mature nations and close neighbors do not allow attacks to control their relations with each other. Continue to point out the merits of our ZoPFF/C concepts, specifically as if agreed and implemented, would ensure close and stable relations

within the region and between neighbors. It would quickly build trust and feed mutually beneficial economic expansion within the WPS. Seek to ascertain their views on how to reduce regional tensions. Express our support for confidence building measures.

Express our continued opposition to their nine-dashed line claim based on the supporting evidence and UNCLOS provisions for islands, EEZs and continental shelves. Express our continued reliance on established rules of law and established mechanisms for resolution of conflicting claims. Insist that if China is to be accepted as the “good neighbor” that it purports itself to be, then it must submit and advance its claims through the same legal process as our nation did, be prepared to accept the outcome, and thereafter negotiate fair resolutions in accordance with international norms.

United States: In your talks with the United States, first thank the delegation for Washington’s increasing support of our nation and its long-term security. Their support of our positions in the WPS, especially regarding UNCLOS arbitration and our ZoFFP/C concept, are appreciated. Seek their continued support through consistent policies that focus first on continuing measures to balance the rising power of China. Their increase of influence in the region, through building bilateral and multilateral relations, undertaking security enhancement measures, and increasing financial support all add to the security of the region. Seek their influence with Beijing to push Chinese leaders away from reliance on bilateral negotiations, which favor China, and instead toward genuine negotiations within multilateral forums. Also, seek their help to convince China to abide by the tenets of UNCLOS. Ask the US to support specific confidence building measures, such as a temporary suspension of military patrols and provocative military measures, establishment of an enforceable WPS Code of Conduct, and a set of common operating procedures for all naval and air forces operating in the region.

India and Japan: In your talks with Japan and India, thank them for their increased economic, military and diplomatic support. Specifically, thank the Indian delegation for New Delhi’s support in the energy exploration arena. Seek the support of both nations, in concert with the US, for our latest measures as stated above. Seek their continued commitment to the region, to ASEAN, to UNCLOS provisions, and to a multilateral approach to problem-solving measures.

Vietnam: Thank the delegation for their support of our arbitration efforts. Seek their views on our ZoPFF/C concept as a reasoned, multilateral approach that begins to address our common problems in a productive manner while simultaneously allowing the development of shared resources. Seek to continue the alignment of our positions in opposing Chinese claims within the WPS and our commitment to a multilateral approach on issue resolution. Seek agreement from Vietnam to follow our lead and bring its own case against China’s claims to the UNCLOS tribunal. Given Vietnam’s increasing openness, seek to understand its position on the possibility of increased basing rights for naval and air forces of the United States, India, Australia and possibly Japan.

Brunei, Indonesia, and Malaysia: In your talks with Brunei, Indonesia, and Malaysia express our continued commitment to ASEAN, but also reiterate our frustration at the organization’s inability to support its individual members on crucial issues and its seeming acquiescence to China. This goes against the fundamental concepts that drove the rationale for the organization’s very existence. Express our support for *effective* ASEAN leadership as the appropriate multilateral forum to resolve WPS issues. Explore the current state of their relations with Beijing, given areas of confrontation and cooperation. Prevail on them to help make our case with all parties for the ZoPFF/C concepts.